

Court No. - 21

Case :- WRIT - C No. - 30374 of 2014

Petitioner :- M/S. Bijnore Chemicals Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd.

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- K.P. Yadav,A.N. Singh

Hon'ble Krishna Murari,J.

Hon'ble Mrs. Vijay Lakshmi,J.

Connect and list with Writ Petition (C) No. 51844 of 2009.

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri Pranjal Mehrotra who has accepted notice on behalf of respondents no.1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 16.04.2014 issued by the respondent no.2.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others). Learned counsel for the petitioner further submits that in several matters identical questions are involved.

Respondents may file counter affidavit within six weeks. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after expiry of the aforesaid period.

In view of the interim order as already granted in Writ Petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 28.5.2014

Anand Sri./-

Chief Justice's Court

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Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- K.P. Yadav, A.N. Singh, Pranjal Mehrotra

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Yashwant Varma, J.

Learned counsel for the petitioner submits that, with the passage of time, this writ petition has rendered infructuous.

Petition is disposed of as infructuous.

Order Date :- 27.2.2017

AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)